



.IN THE HIGH COURT OF JUDICATURE AT BOMBAY
BENCH AT AURANGABAD

PUBLIC INTEREST LITIGATION NO.89 OF 2019

Jalindar s/o Vinayak Pandarkar
Age: 55 years, Occu.: Agri.
R/o. Pimpalgaon Pisa, Tq. Shrigonda,
District Ahmednagar

.. Petitioner

Versus

1. The State of Maharashtra
Land Revenue Department and
Water Conservative Department
Mantralaya, Mumbai-32
Through the Principal Secretary.
2. The Divisional Commissioner, Nashik,
Division Nashik, Tq. And Dist. Nashik.
3. The District Collector, Ahmednagar,
Taluka and District Ahmednagar.
4. The Tahsildar Shrigonda,
Taluka Rahuri, District Ahmednagar.
5. Kukadi Irrigation Department,
Taluka Shrigonda, District Ahmednagar,
Through the Executive Engineer,
Kukadi Irrigation Department
Taluka Shrigonda, District Ahmednagar.
6. Maharashtra State Electricity Distribution
Company Limited,
Sub Divisional Office, Belwandi,
Through the Executive Engineer,
Taluka Shrigonda, District Ahmednagar.
7. Prakash s/o Bhikoba Shivankar
Age: Major, Occu.: Agri.,
8. Babasaheb s/o Bhikoba Shivankar

Age: Major, Occu.: Agri.,

9. Sunil s/o Bhikoba Shivankar,
Age: Major, Occu.: Police Patil and Agri.

All R/o. Pimpalgaon Pisa, Tq. Shrigonda,
District Ahmednagar

.. Respondents

...
Mr. Amol S. Gandhi, Advocate for the petitioner.
Mr. R. S. Wani, AGP for respondent Nos.1 to 4/State.
Mr. Gulab B. Rajale, Advocate for respondent No.5.
Mr. S. P. Salgar, Advocate h/f Mr. N. V. Gaware, Advocate for respondent Nos.7 to 9.

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**CORAM : SMT. VIBHA KANKANWADI &
HITEN S. VENEGAVKAR, JJ.**

**RESERVED ON : 16 MARCH 2026
PRONOUNCED ON : 07 APRIL 2026**

JUDGMENT (Per Smt. Vibha Kankanwadi, J.) :-

. The petitioner seeks directions against the respondents to initiate legal proceedings against respondent Nos.7 to 9 and to remove the encroachment and illegal construction made by them over the bank of Visapur dam situated at Taluka Shrigonda, District Ahmednagar as per the Government Circular dated 07.09.2010 and 10.10.2013 and also to initiate legal proceedings against respondent Nos.7 to 9 for illegally using Government land from 2008 till handing over of the possession of the encroached land.

2. The petitioner, who is resident of Pimpalgaon Pisa, Taluka Shrigonda, District Ahmednagar, has contended that the water dam, namely, Visapur

dam was constructed at Visapur, Taluka Shrigonda, District Ahmednagar at the bank of river in the Government land. Respondent No.9 is the Police Patil of the village and by using his position, respondent Nos.7 to 9 have applied to respondent Nos.3 and 4 to permit them to cultivate the land admeasuring 1 H each, which is at the bank of the dam. By order dated 04.09.2004 and 29.11.2007, respondent No.4 had granted permission to respondent Nos.7 to 9 to cultivate 1 H land each till 31.10.2008. Thereafter, respondent Nos.7 to 9 have made encroachment over the land which is near about 30-40 Acres and without permission from the Irrigation Department, they have also obtained the electricity connection over the said encroached area and they are directly fetching water from the dam. None of the public officers are taking cognizance of the same. When the petitioner got knowledge about the illegality committed by respondent Nos.7 to 9, he sought information from respondent No.5. Respondent No.5 by communication dated 01.12.2015 informed the petitioner that no permission has been granted to any person to cultivate the land at the bank of Visapur dam. By such illegal activity, respondent Nos.7 to 9 are also causing damage to the dam as well as the tank as there is rampant illegal fetching of water. Respondent Nos.7 to 9 have given reply to the communication by the respondents/authorities on 07.12.2017 stating that since 2004 they are in possession of the land and have paid the charges upto the year 2005. Maharashtra Krishna Khore Vikas

Mahamandal by its communication dated 28.03.2018 directed respondent No.5 to remove encroachment made by respondent Nos.7 to 9 with the help of police authorities, as respondent Nos.7 to 9 made assault over the authorities of said Mahamandal when they had gone for inspection of the area encroached upon. Respondent No.3 Collector, Ahmednagar by communication dated 11.05.2018 directed respondent No.5 Kukadi Irrigation Department to remove the encroachment made by respondent Nos.7 to 9 and initiate criminal action against them. The said authority i.e. respondent No.5 has also admitted that illegality has been committed by respondent Nos.7 to 9. Panchanama has been drawn in respect of encroached area and respondent No.5 by communication dated 04.01.2019 had directed respondent Nos.7 to 9 not to cultivate the land, still neither the encroachment has been removed, nor any action has been taken against respondent Nos.7 to 9. The possession of respondent Nos.7 to 9 is illegal on the government land. The construction upon the same is also illegal. Hence, this petition.

3. On behalf of respondent No.3 affidavit-in-reply has been filed by Mr. Sandeep Vishnu Nichit, the Additional District Collector, Ahmednagar, wherein it has been admitted that on the application of respondent Nos.7 to 9, respondent No.4 had granted permission to them to cultivate the alluvial land admeasuring 1 H situated adjacent to Visapur dam. The said permission

was till 31.10.2008 only. Thereafter, no such permission has been granted by respondent No.4 to respondent Nos.7 to 9. After receiving the petitioner's application regarding removal of encroachment and illegal entries of the alluvial to the land adjacent to Visapur dam, the Additional Collector, Ahmednagar has immediately directed the inquiry and sought report. On receiving the report, the Additional Collector, Ahmednagar by its communication dated 11.05.2018 informed the Executive Engineer, Kukadi Irrigation, Division No.2, Shrigonda to take appropriate steps in view of Circular dated 10.10.2013. The responsibility is of the concerned department to prevent the encroachment over the land, in whose possession the Government land is given i.e. the Government department. It is the responsibility of that department only to lodge the FIR also.

4. Affidavit-in-reply has also been filed by Mr. Sunil Prakash Shivankar on behalf of respondent Nos.7 to 9. It is stated that the petitioner has deliberately suppressed the material facts from this Court. He has no *locus standi* to file Public Interest Litigation as the petitioner himself is also fetching water from the Hanga river and he is also one of the beneficiary for the use of the water. The Public Interest Litigation has been directed for the harassment of respondent Nos.7 to 9. In earlier point of time i.e. on 29.11.2017, he had filed complaint against the petitioner with Belwandi Police Station contending that time and again the petitioner is harassing

them. Action under Section 107 of the Code of Criminal Procedure was taken against the petitioner and, therefore, the present Public Interest Litigation has been filed with *mala fide* intention. The grandfather of the deponent was a freedom fighter and had served in the Military Department as he had actively participated in the Second World War. He was awarded honorary stipend and certificate to that effect has been issued on 24.10.1994. After the retirement from military service, his grandfather settled in Pimpalgaon Pisa village. He was landless person and had no source of livelihood and, therefore, he made application to the Collector that he be allotted with the land. The proposal was forwarded on 22.11.1982 to respondent No. 5, and the land acquired for Visapur Water Dam, which was lying unused, was given for cultivation. The grandfather of the deponent had then filed application with respondent No.5 on 17.10.1983 requesting for execution of lease of 99 years. Grandfather of the deponent expired in the year 2000 and father of the deponent was illiterate. He was not aware about the procedure to transfer the land in his name. Respondent No.9 got knowledge about the allotment of the land to his grandfather. Thereafter, he started making inquiry. He came to know that the water dam was constructed between 1897 to 1927 by the British Government and no record is available with respondent No.5. The record pertaining to the allotment of the land to the deponent's grandfather is not traceable, however, the fact

remains that the deponent's grandfather and thereafter his father were cultivating the said land. When the documents were not traceable, the deponent has filed application before the Tahsildar to permit the cultivation of the allotted land that was in their possession and by order dated 04.09.2004, the permission was granted. Initially, it was granted for 11 months. Though for renewal subsequent application was filed, the Tahsildar has not accepted the application and orally informed the deponents that there is no requirement of permission for each year and directed deponent to pay annual fees of Rs.500/- each with the Talathi. Orally the then Tahsildar had informed the deponent that the deponent can continue with the earlier arrangements by depositing the annual fees with Talathi. An application was filed with Tahsildar Shrigonda on 12.12.2017 for renewal of permission, as the Talathi had refused to accept the annual fees from the deponent. No action was taken by the Tahsildar on the said application. Thereafter, the deponent had filed application under Right to Information Act with the office of Tahsildar seeking status of the application and what action is being taken. But when there was no response, the Second Appeal was filed, which is now pending before the State Information Commission, Bench at Nashik. He states that none of respondent Nos.7 to 9 have made any encroachment on the land, rather they are fetching the water from Hanga river. In view of the said allotment and by order dated 26.05.2003, respondent No.5 has given

permission to them to fetch water for a period of 18 years.

5. There is additional affidavit-in-reply on behalf of respondent No.3 by Mr. Suhas Shankarrao Mapari, Additional Collector, Ahmednagar regarding the actions taken by the Collector office, wherein there is reference to the report that was submitted on 10.03.2023. It is specifically stated that respondent Nos.7 to 9 have made encroachment to the extent of 6 H 32 R land towards western and south-west side of land adjacent to Visapur dam. The land admeasuring 20 R adjacent to Gut No.20 near Visapur dam (विसापुर जलाशय सांडवा) has been encroached by the holder of land Gut No.16 and 4 R land adjacent to Gut No.20 near Visapur dam has also been encroached by the holder of Gut No.17 i.e. Rayat Shikshan Sanstha, Satara. In the report of Deputy Superintendent of Land Records, Shrigonda measurement map has been submitted. It is stated that in compliance to the directions given by this Court vide order dated 18.01.2023, the encroachment made adjacent to Gut No.20 near Visapur dam has been removed by Tahsildar Shrigonda to the extent of 7 Acres. The possession of the encroached land after the removal has been handed over to Kukadi Irrigation Department on 15.05.2023 in presence of respondent No.7. The possession receipt to that effect has been executed. However, it was found that boundary marks of the land were not fixed and taking into consideration the said ambiguity and future

complications, on 19.05.2023 the Additional Collector, Ahmednagar has again directed Tahsildar Shrigonda and Deputy Superintendent of Land Records, Shrigonda to fix the boundary marks on the land and then handover the possession of the land to Kukadi Irrigation Department. Thereafter, the boundary marks have been fixed in presence of respondent No.7. Then the possession of the land in dispute, excluding 7 Acres land, has been given on 23.05.2023 to Kukadi Irrigation Department. He reiterates that earlier the permission was granted only for a limited period i.e. till 31.10.2008 only. That permission was never extended thereafter.

6. Affidavit-in-reply has been filed on behalf of respondent No.5 by Mr. Avinash s/o Shivajirao Phadtare, Sub-Divisional Engineer, Kukadi Irrigation Sub-Division, Shrigonda, District Ahmednagar. He has reiterated the same facts as disclosed by affiant Mr. Sandeep Nichit. He further states that there are certain lands at the bank of dam including the Government land, but respondent No.5 is not in a position to ascertain the exact area of encroachment made by respondent Nos.7 to 9 for want of joint measurements. Respondent Nos.7 to 9 are using one or other tactics for causing obstruction for joint measurements. Undertaking has been given that prompt action would be taken for removal of the encroachment made by respondent Nos.7 to 9 immediately after receipt of the joint measurement reports and maps from the office of Deputy Superintendent of land Records,

Shrigonda.

7. Heard learned Advocate Mr. Amol S. Gandhi for the petitioner, learned AGP Mr. R. S. Wani for respondent Nos.1 to 4/State, learned Advocate Mr. Gulab B. Rajale for respondent No.5 and learned Advocate Mr. S. P. Salgar holding for learned Advocate Mr. Niteen V. Gaware for respondent Nos.7 to 9. All of them have reiterated the same facts as per the pleadings of the respective parties.

8. The public authorities have clearly indicated that respondent Nos.7 to 9 have made encroachment. Certainly, from the affidavit on behalf of respondent Nos.7 to 9 would disclose that their grandfather had participated in the Second World War and, therefore, certain land was stated to have been given, however, there is absolutely no document with respondent Nos.7 to 9. Merely on the basis of the fact that the grandfather was honoured with title (जागतिक स्वातंत्र्य सेनानी), respondent Nos.7 to 9 cannot utilize the piece of land beyond its term. As per the Government record, the utilization or cultivation was permitted only for certain period i.e. from 04.09.2004 and 29.11.2007 till 31.10.2008. It has not been extended thereafter. Respondent Nos.7 to 9 have tried to produce on record certain documents, however, none of those documents are beyond 31.10.2008. The receipts in respect of payment of fees of Rs.500/- do not indicate that the said payment is towards

the cultivation of the disputed land.

9. Now, as per the affidavit-in-reply of Mr. Suhas Shankarrao Mapari, the Additional Collector, Ahmednagar, measurement was carried out again. He has specifically stated that possession of the land has been handed over on 15.05.2023 to Kukadi Irrigation Department. Receipt to that effect has been produced on record so also the report has been submitted. It is stated that the boundary marks were not yet fixed though the possession was handed over on 15.05.2023 and therefore, re-measurement was done, boundaries were fixed, which is stated to be excluding 7 Acres of land. In respect of alluvial land, he reiterated the said fact that the permission that was granted for cultivation of the said land to respondent Nos.7 to 9 was only till 31.10.2008. It was never extended beyond that period. Under such circumstance, we proceed to pass the following order :-

ORDER

- I) The Public Interest Litigation is partly allowed.
- II) Respondent No.3 the District Collector, Ahmednagar to get the disputed land measured once again, if the boundary marks are not yet fixed.

III) Respondent Nos.7 to 9 to cooperate in the joint measurement and shall not raise any obstruction in any manner.

IV) Respondent No.3 should then proceed to recover the encroached portion from respondent Nos.7 to 9 and in that respect respondent Nos.7 to 9 to handover the encroached portion.

V) This entire exercise to be carried out within a period of three months from today.

VI) The possession of the encroached portion be given to respondent No.5.

VII) Out of the amount of Rs.25,000/- deposited by the petitioner to show his *bona fides*, amount of Rs.15,000/- be returned to the petitioner and rest of the amount i.e. amount of Rs.10,000/- be credited with the High Court Legal Services Sub-Committee, Aurangabad.

[HITEN S. VENEGAVKAR]
JUDGE

[SMT. VIBHA KANKANWADI]
JUDGE

scm